

MASTER SERVICES AGREEMENT

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Effective Date: 1 October 2026

Customer: Northstar Retail Technologies Pvt. Ltd. ("Customer")

Supplier: BluePeak Software Solutions Pvt. Ltd. ("Supplier")

1. PURPOSE AND SCOPE

Supplier will provide software development, integration, maintenance, technical support, reporting and related professional services described in one or more Statements of Work ("SOWs"). Each SOW forms part of this Agreement. In the event of conflict, the SOW controls only for the specific services it expressly covers.

2. FEES AND PAYMENT

Customer will pay the fees stated in the applicable SOW. Unless an SOW states otherwise, undisputed invoices are payable within **30 days** of receipt. Late undisputed amounts may accrue interest at **1.0% per month**, or the maximum amount permitted by law, whichever is lower.

For the pilot SOW, the implementation fee is **AED 100,000**. Travel expenses require prior written approval. Supplier may suspend only the affected non-payment services after giving at least ten business days written notice.

3. CONFIDENTIALITY

Each party shall protect the other party's Confidential Information using at least reasonable care and shall use it only to perform or receive services under this Agreement. Confidential Information excludes information that is publicly available without breach, independently developed without use of the information, or lawfully received from a third party without a duty of confidentiality.

4. DATA PROTECTION AND SECURITY

Supplier shall maintain administrative, technical and physical safeguards appropriate to the nature of the data processed. Supplier shall notify Customer of a confirmed security incident affecting Customer Data without undue delay and, where reasonably practicable, within **48 hours** after confirmation. Supplier shall maintain access controls, encryption in transit, and role-based permissions for production systems.

5. INTELLECTUAL PROPERTY

Customer retains ownership of Customer Materials. Subject to payment of applicable fees, Supplier assigns to Customer the intellectual property rights in project-specific deliverables created specifically for Customer under an SOW, excluding Supplier Background Technology, general know-how and third-party components. Supplier grants Customer a perpetual, non-exclusive license to any Supplier Background Technology embedded in a deliverable to the extent necessary to use that deliverable.

6. REPRESENTATIONS AND WARRANTIES

Supplier represents that services will be performed in a professional and workmanlike manner. For a period of **90 days** after delivery, Supplier will use commercially reasonable efforts to correct material non-conformities against the applicable SOW. Except as expressly stated, the services are provided without additional warranties to the fullest extent permitted by law.

7. INDEMNIFICATION

Supplier will defend and indemnify Customer against a third-party claim alleging that a Supplier-created deliverable, as used in accordance with the Agreement, infringes an applicable patent, copyright or trademark. Customer will promptly notify Supplier of the claim and provide reasonable cooperation. Customer will indemnify Supplier against third-party claims arising from Customer Materials that infringe third-party rights.

8. LIMITATION OF LIABILITY

Except for liability that cannot lawfully be limited, each party's aggregate liability arising out of or relating to this Agreement will not exceed **AED 100,000**. Neither party will be liable for indirect, incidental, special, consequential or punitive damages, or for lost profits, lost revenue, or loss of goodwill, even if advised of the possibility of those damages.

TEST QUOTE: "Except for liability that cannot lawfully be limited, each party's aggregate liability arising out of or relating to this Agreement will not exceed AED 100,000."

9. TERM AND TERMINATION

The Agreement begins on the Effective Date and continues for one year, automatically renewing for successive one-year periods unless either party gives at least **30 days** written notice of non-renewal. Either party may terminate for material breach if the breach is not cured within **30 days** after written notice. Customer may terminate an SOW for convenience on **15 days** written notice, subject to payment for accepted work performed through the effective termination date.

10. DISPUTE RESOLUTION

The parties will first attempt in good faith to resolve disputes through executive-level discussions. If unresolved after 30 days, the dispute will be submitted to arbitration seated in **Dubai, United Arab Emirates**, in English, under the rules stated in the applicable SOW or, if none, mutually agreed rules.

11. AUDIT AND RECORDS

Supplier shall maintain records reasonably necessary to demonstrate compliance with this Agreement for at least **three years** after the relevant service period. Customer may conduct one reasonable compliance review per year with at least 10 business days notice, provided the review does not unreasonably disrupt Supplier operations.

12. SUBCONTRACTORS

Supplier may use subcontractors for ordinary delivery activities but remains responsible for their performance. Supplier shall ensure subcontractors with access to Customer Data are bound by obligations materially consistent with the relevant confidentiality and security requirements of this Agreement.

13. FORCE MAJEURE

Neither party will be liable for delays caused by events beyond its reasonable control, provided the affected party promptly notifies the other party and resumes performance when practicable. Force majeure does not excuse payment obligations for services already accepted.

14. NOTICES

Notices under this Agreement must be in writing and sent by email with confirmation, recognized courier, or another method specified in the SOW. A notice is effective when receipt is confirmed, except that routine operational communications need not satisfy this clause.

15. GOVERNING LAW

This Agreement is governed by the laws of the **United Arab Emirates**, without regard to conflict-of-law principles. The governing law does not limit any mandatory law that cannot be waived by contract.

16. ORDER OF PRECEDENCE

If there is a conflict among documents, the following order applies: (a) a signed amendment, (b) the applicable SOW, (c) this Agreement, and (d) referenced policies, unless the document expressly states otherwise.

17. SERVICE LEVELS

For support services identified as critical, Supplier will acknowledge a production severity-one incident within **1 hour** and target a workaround within **8 hours**. Service credits, if any, are the Customer's sole monetary remedy for missed service-level targets unless the applicable SOW states otherwise.

18. CUSTOMER RESPONSIBILITIES

Customer will provide timely access, information, approvals, test data and designated personnel reasonably required for delivery. Delays caused by missing Customer dependencies may result in corresponding schedule adjustments.

19. CHANGE CONTROL

Scope changes must be documented in a written change request or SOW amendment. The request should describe the changed functionality, assumptions, schedule impact and fee impact. Supplier will not treat an unapproved change as billable work.

20. COMPLIANCE

Each party shall comply with laws applicable to its performance under the Agreement. Neither party is required to take an action that would violate applicable sanctions, export-control restrictions or other mandatory law.

21. MISCELLANEOUS

This Agreement constitutes the entire agreement concerning its subject matter and supersedes prior written or oral discussions. Amendments must be in writing and signed by authorized representatives. Neither party may assign the Agreement except to an affiliate or successor in connection with a merger, reorganization or sale of substantially all relevant assets, subject to continued performance.

SIGNATURES

For Northstar Retail Technologies Pvt. Ltd.	For BluePeak Software Solutions Pvt. Ltd.
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____